

Court No. - 39

Case :- WRIT - C No. - 25908 of 2022

Petitioner :- M/S Swastik Hose Pipe Ltd.

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Rajiv Sharma, Abhishek Sharma

Counsel for Respondent :- C.S.C., Kartikeya Saran

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

The petitioner herein is raising a dispute with regard to computation of electricity bills.

The remedy before the petitioner is to approach the Executive Engineer concerned by invoking provisions of Clause 6.5 of the Electricity Code, 2005.

Sri Vinayak Ranjan holding brief of Sri Kartikeya Saran learned counsel appears on behalf of the respondent nos.4 and 5.

Be that as it may, without entering into the merits of the claim of the petitioner the writ petition is **disposed of** with the observation that the petitioner shall file his objection before the respondent no.5 i.e. Executive Engineer Electricity Distribution Division-II Paschimanchal Vidyut Vitran Nigam Ltd Khakeda Baghat by invoking provisions of Clause 6.5 of the Electricity Supply Code, 2005 within a period of two weeks from today along with the copy of this order.

In case, such an objection is filed, the competent authority shall be under obligation to take an expeditious decision in accordance with law, preferably, within a period of six weeks, thereafter.

For a period of two months or till a decision is taken by the Executive Engineer, pursuant to the above direction, no coercive measure shall be taken against the petitioner.

In case of any default on the part of the petitioner in filing objection within the time given above, it would be open for the respondent to proceed in accordance with law.

Order Date :- 15.9.2022

Harshita